

26STCV11624 26STCV11624

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 26STCV11624 Hearing Date: September 3, 2026 Dept: 735

Ashlee Grant

v. CommonSpirit Health, et al.

Defendants Pacific Central Coast

Health Centers and CommonSpirit Health's Motion to Change Venue

BACKGROUND

On April 10, 2026, Plaintiff Ashlee Grant filed a complaint against Defendants CommonSpirit Health, Pacific Central Coast Health Centers (PCCHC), and Nicole Garcia, Maria Vargas, and Valerie Murguia, asserting FEHA and non-FEHA claims arising from her Santa Maria employment as a Call Center Representative. Defendants CommonSpirit Health, and PCCHC move to transfer venue of this action to the Cook Division of Santa Barbara County (Santa Maria) on the basis that Defendants are all in Santa Maria, with the exception of CommonSpirit Health, PCCHC's parent company who was not Plaintiff's employer, and all alleged conduct occurred in Santa Maria, records are maintained/administered there, and Plaintiff's employment was in Santa Maria.

DISCUSSION

The FEHA venue statute controls the entire action—including non-FEHA claims—when they arise from the same matrix of operative facts. Under Government Code section 12965(c)(3), venue is proper in any county: (1) where the unlawful practice is alleged to have been committed; (2) where relevant employment records are maintained; or (3) where the aggrieved person would have worked but for the alleged unlawful practice. The moving defendant bears the burden of demonstrating that the plaintiff's choice of

venue is improper under all three of these disjunctive provisions.

All three provisions point to Santa Barbara. All the alleged unlawful employment practices occurred in Santa Maria, and this is admitted in the Complaint. (Complaint, ¶¶ 3, 5, 13, 14-17; Padilla Decl., ¶ 3.) Further, the records are maintained and administered in the regular course of business by PCCHC in Santa Maria. (Padilla Decl., ¶ 4.) Finally, had Plaintiff continued working for Defendant, she would have reported to work at PCCHC's facility located at 117 W. Bunny Avenue in Santa Maria. (Id.)

Because Defendants have shown Santa Barbara County is proper under the three prongs, the fallback venue of SpiritHealth's operations being in Los Angeles County is not triggered.

CONCLUSION

The court grants Defendants' motion to change venue. Plaintiff's counsel is ordered to pay the costs of transfer pursuant to Code of Civil Procedure section 399.

Defendant shall give notice.